

IN THE _____ COURT OF _____, ARKANSAS
VETERANS TREATMENT SPECIALITY COURT DIVISION

STATE OF ARKANSAS

PLAINTIFF

vs.

Case No. 72CR-2004-000000118844-A

Maria-Alejandra O'Shaughnessy-Whitfield
(First, Middle, and Last name)

DEFENDANT

**ORDER TO DISMISS AND SEAL OFFENSE IN VETERANS
TREATMENT SPECIALITY COURT PROCEEDING PURSUANT TO
A.C.A. §16-101-106 AND A.C.A. §16-90-1401 {AND TO SEAL
SEPARATE PREVIOUS OFFENSE FROM ANOTHER COURT}**

Before the Court is the Petition of the Defendant to seal his/her record.

The Court finds and orders as follows:

1. The defendant was arrested on the _____ day of _____,
_____, and charged with the offense(s) of:

in violation of A.C.A. § _____.

2. With the Defendant's consent and without entering a judgment of guilt, the Court deferred further proceedings and placed the Defendant on probation/court supervision.
3. The terms and conditions of Defendant's probation/court supervision required the successful completion of an approved veteran's treatment specialty court program.

4. On _____ the Defendant successfully completed the veteran's treatment specialty court program.
5. The Court has received a recommendation from the prosecuting attorney for the dismissal of the veteran's treatment specialty court program and the sealing of the record.
6. ☐ The Defendant has no pending felony charge in any state or federal court; or
- ☐ The Defendant has one or more pending felony charge in state or federal court and the status of that/those charges is/are as follows:
- _____
- _____
7. If applicable, on the _____ day of _____, _____, in case number(s) _____ in _____ County _____ Court the Defendant previously plead guilty or nolo contendere to or was found guilty of _____,
- in violation of A.C.A. § _____.
8. The offense(s) listed in Paragraph 7 above, if any, is/are a target offense as defined in A.C.A. § 16-93-1202(10)(A)(i).
9. The offense(s) listed in Paragraph 7 above, if any, is/are not:
- i. Residential burglary; A.C.A. § 5-39-201(a0
 - ii. Commercial burglary; A.C.A. § 5-39-201(b)
 - iii. Breaking or entering; or A.C.A. § 5-39-202
 - iv. Driving or boating while intoxicated. A.C.A. § 5-65-103
10. The Defendant has satisfactorily fulfilled the terms and conditions of probation/court supervision or has been released by the court prior to that time.

11. The defendant ☐ HAS or ☐ HAS NOT been rehabilitated.

IT IS, THEREFORE, by the Court, ORDERED that the Petition of the Defendant, _____, to Dismiss and Seal the Record in the above-referenced matter pursuant to A.C.A. §16-101-106, should be, and hereby is GRANTED.

IT IS FURTHER ORDERED, if applicable, that the Petition of the Defendant to enter an Order Sealing case number(s) _____ from _____ County _____ Court pursuant to A.C.A. §16-101-106 (b)1 is hereby GRANTED if concurred to by the Judge of said Court as evidenced by the Judge's signature below.

IT IS FURTHER ORDERED that the Clerk is directed to mail or transmit a certified copy of the ORDER to the Arkansas Crime Information, the Administrative Office of the Courts, the prosecuting and/or city attorney, the District Court Clerk, if applicable, and the arresting agency. Each of those agencies shall comply with the requirements of A.C.A. §16-90-1413 as it pertains to them.

Judge

Date

Concurred in the Order Sealing case number(s) _____ from
_____ County _____ Court

Judge

Date

**THE FOLLOWING INFORMATION IS REQUIRED FOR PROPER
IDENTIFICATION OF THE DEFENDANT IN THE STATE AND
NATIONAL RECORD SYSTEMS**

Race _____

Arrest Tracking Number _____

Sex _____

SID No. _____

DOB _____

FBI No. (If known) _____